MOSES MPOFU
and
MIKE CHIMOMBE
versus
THE STATE

HIGH COURT OF ZIMBABWE
KWENDA J
HARARE, 2 February 2026

Application for leave to appeal to the Supreme Court

W Mabhaudhi & L Masuku, for the State
T Dzvetero & J Koto, for the 1st accused
L Madhuku, GRJ Sithole & A Mugiya, for the 2nd accused

KWENDA J: The applicants filed separate applications for leave to appeal against both conviction and sentence. This judgement disposes of both applications which are opposed by the state.

The applicants were convicted and sentenced at a joint trial which concluded on the 8th of December 2025. In terms of s 44 of the High Court Act [*Chapter 7:06*] a person convicted at a criminal trial held by the High Court may appeal to the Supreme Court against conviction and sentence, but requires the leave of a judge to appeal against conviction if the appeal is based on any ground of appeal which involves a question of fact alone or a question of mixed law and fact. The procedure of applying for leave is set out in r 94 of the High Court Rules, 2021.The applicants intended to make oral applications immediately after sentence was passed on the 8th December 2025 in terms of r94 (1)(a) of the High Court rules but I directed them to proceed in terms of r94 (2) and make the applications in writing and file same with the registrar within twelve days of the date of the sentence. I directed that the rules of this court would apply to the service of the applications and filing of subsequent papers.

The Registrar placed the opposed matters before me, in chambers. I invited the parties to appear before me, in court, just in case they had oral submissions to make. At the sitting,

the parties agreed that I could exercise the powers given in the rules to grant or refuse the applications on the papers before me, as I found fit.

In an application for leave to appeal, the decision whether to grant leave to appeal depends on the prospects of success. If the prospects are reasonable, the application should be granted; otherwise, it should be refused. In order to succeed, it is not enough for the applicant to make out an arguable case, for there are very few cases which are not arguable in the wide sense of the word. Some authorities in South Africa seemed to regard there being a reasonable prospect of success if the case is arguable. It is clear, however, that what was meant by an arguable argument was that there should be substance in the argument. Where there is substance in an argument, there must *ipso facto* be a reasonable prospect of success. See *S* v *McGown* 1995(2) ZLR 81 (S). An application for leave to appeal against sentence should be treated less rigidly than one to appeal against conviction, because the assessment of sentence is one of the more difficult tasks with which a judicial is faced. *S* v *McGown* 1995(2) ZLR 81 (S).

The applicants intend to appeal against both conviction and sentenced.

The background to the applications is as follows: -

The applicants appeared before me and two assessors as accused persons at a joint trial charged with fraud as defined in s136 of the Criminal Law (Codification and Reform) Act [*Chapter9:07*] (the Criminal Code). The crime involved millions of public funds. The applicants pleaded not guilty and the matter proceeded to trial. At the conclusion of the trial, we found the accused persons guilty as co-perpetrators of the crime charged, as provided for in s196A of the Criminal Law Code.

We sentenced the 1st applicant to imprisonment for 22 years, of which we suspended 3 years for 5 years on condition that the applicant did not commit any offence involving dishonesty during the period of suspension for which upon conviction he is sentenced to imprisonment without the option of a fine. Of the remaining 19 years, we suspended 4 years on condition the applicant paid restitution in the sum of US$2 060 250.60 to the fiscus through the registrar of this court, no later than the 28th February 2026. The amount payable by him was informed by the fact that it became clear during the trial that Blackdeck (Pvt) Ltd and its other lawful director and an unlawful director were liable to be charged for the crime, would have participated in the proceeds. We sentenced the 2nd applicant to imprisonment for 17 years, of which we suspended 3 years for 5 years on condition that the applicant did not

commit any offence involving dishonesty during the period of suspension for which, upon conviction, he is sentenced to imprisonment without the option of a fine. Of the remaining 14 years, we suspended 2 years on condition he paid restitution to the fiscus in the sum of US$964 064.64 through the Registrar of this court no later than the 28th February 2026. The amount payable by him was informed by what the State proved to have been his share in the proceeds of the crime disbursed to him through the bank account of Millytake Enterprises (Pvt) Ltd.

The State case was that sometime during the year 2021, the Government of Zimbabwe set up a Presidential Goat Pass-On Scheme to alleviate poverty among the less privileged persons across the country's ten provinces. The target was to buy 500 000 special goat breeds for distribution to households throughout Zimbabwe in the scheme to be administered by the Ministry of Lands, Agriculture, Water, Fisheries and Rural Development [hereinafter referred to as the Ministry]. Pursuant to the mandate, the Ministry published a tender on the 3rd of September 2021 for the supply and delivery of the goats together with a standard bidding template setting out mandatory requirements for eligibility. The tender was open to companies only. The bidding company was required to submit identical fastened copies of the bid (preferably spiral bound) with one marked as the 'original' and two others, each marked as a 'copy'. The name of the company submitting a bid would appear on the face of the bid. The company was required to submit its certificate of incorporation, a list of its directors on form CR 14, a valid ZIMRA tax clearance certificate for the year 2021, a valid NSSA compliance certificate for the same period, a clear statement of the payment terms and state delivery period. The Ministry received bids from Kotrum Enterprises (Pvt) Ltd, Millytake Enterprises (Pvt) Limited, Zvikomborero Farms (Pvt) Ltd and Blackdeck Livestock and Poultry Farming. Kotrum Enterprises Pvt Ltd and Millytake Enterprises failed to meet the minimum requirements leading to their disqualification. The bids submitted by Zvikomborero Farms (Pvt) and Blackdeck Livestock and Poultry Farming sailed through whereupon they were, each, awarded specified portions of the tender.

The bid submitted by Blackdeck Livestock and Poultry Farming is at the centre of this trial. The allegation by the State is that the bid submitted by Blackdeck Livestock and Poultry Farming was fraudulent in that it misrepresented the following material facts.

Firstly, Blackdeck Livestock and Poultry Farming was not a company incorporated in terms of the laws of Zimbabwe and lawfully known by that name. It had no legal capacity to.

Legal documents belonging to Blackdeck (Pvt) Ltd were submitted to give the false impression that Blackdeck Livestock and Poultry Farming was a company. As a result of the misrepresentation the Ministry was induced to treat the bid submitted by Blackdeck Livestock and Poultry Farming as valid. The Ministry was also induced to enter into a contract with Blackdeck Livestock and Poultry Farming on 16 November 2021, for the supply and delivery of 632 001goats for Presidential Goats pass-on Scheme valued at US$87 757 168.00, with the belief that it had capacity to act. Blackdeck Livestock and Poultry Farming appears as a party to the agreement and supplier of the goats. The 1st accused signed the contract on behalf of Blackdeck Livestock and Poultry Farming. The 1st accused was a director of Blackdeck (Pvt) Ltd), a company whose name was almost to the fictitious company. One Tinashe Chimombe signed as a witness on behalf of Blackdeck Livestock and Poultry Farming.

Secondly, Blackdeck Livestock and Poultry Farming supported the impugned bid with a Zimbabwe Revenue Authority (ZIMRA) clearance certificate which did not belong to it. It turned out to be a tax clearance issued to Skywalk (Pvt) Ltd, which had been altered to appear as a valid certificate issued to Blackdeck (Pvt) Ltd for the year 2021. Neither Blackdeck Livestock and Poultry Farming nor Blackdeck (Pvt) Ltd was tax compliant or eligible to be issued with a ZIMRA clearance certificate. Blackdeck Livestock and Poultry Farming was able to escape disqualification as a result of the misrepresentation.

Thirdly, Blackdeck Livestock and Poultry Farming the bid with the National Social Security Authority (NSSA) compliance certificate which did not belong to it. It turned out to be a certificate issued to Skywalk (Pvt) Ltd, which had been altered to appear as a valid certificate issued to Blackdeck (Pvt) Ltd for the year 2021. Neither Blackdeck Livestock and Poultry Farming nor Blackdeck (Pvt) Ltd was tax compliant or eligible to be issued with a NSSA clearance certificate in the year 2021. Blackdeck (Pvt) Ltd had been deregistered by NSSA in 2016. Blackdeck Livestock and Poultry Farming was able to escape disqualification as a result of the misrepresentation.

Fourthly, the State alleged that Blackdeck Livestock and Poultry Farming had no capacity to deliver the required number of goats as shown by its subsequent behaviour in misappropriating most of the money that had been paid by the Government of Zimbabwe. The Ministry paid a total sum of ZWL$1.6 billion (equivalent to US$7 712 197.10 at the prevailing interbank rates) into the CABS bank account of Blackdeck (Pvt) number

1006126120 provided by Blackdeck Livestock and Poultry Farming in the contract entered into between the Government of Zimbabwe. Upon receipt of the money from the Ministry, Blackdeck (Pvt) Ltd immediately, transferred a total sum of ZWL$200 000 000.00 (Two hundred million Zimbabwe Dollars) into the CABS bank account of Millytake Enterprises Pvt Ltd number 1129742431, a company controlled by the 2nd applicant.

Following delays in the delivery of the goats, the Ministry's officials made several engagements with the two accused persons demanding delivery. The accused persons in an effort to further deceive and convince the ministry officials falsely claimed to have mobilised 32 500 goats across the provinces which were ready to be distributed to final beneficiaries. The Ministry of Lands then deployed teams to verify if the accused persons were holding the stated number of goats at the holding sites supplied by the accused but could only find 3 713 goats at the said sites. The accused persons only managed to supply a total number of 4 208 goats (the rest were kids) valued at US$331 445.25 from the US$7 712 197.10 paid by the Ministry thereby misappropriating US$7 380 751.85 for their personal use.

Both accused persons pleaded not guilty. The 1st applicant averred that the alleged fraudulent bid was, in actual fact, lawful and intentionally submitted by Blackdeck (Pvt) Ltd, a company duly incorporated in terms of Zimbabwe in 2015. He averred that Blackdeck Livestock and Poultry Farming was the company's trade name. He averred that the name, Blackdeck Livestock and Poultry Farming, was not intended to mislead the Ministry to deal with an entity which did not exist in the eyes of the law because it was clear from all the documentation, submitted with the bid, that the bid belonged to Blackdeck (Pvt) Ltd. As a director of Blackdeck (Pvt) Ltd, the 1st applicant had participated at the board meeting, where, the company resolved to bid for the tender. Blackdeck (Pvt) Ltd outsourced the procurement of the ZIMRA Tax clearance and NSSA compliance certificate to a tax consultant. The consultant brought the certificates which the company used without the knowledge that they were counterfeit. He said, Blackdeck Livestock and Poultry Farming had the capacity to supply the goats and its failure to perform was caused by a breach committed by the Ministry which failed to pay the required deposit in full. All payments were made to Blackdeck (Pvt) Ltd and not him in person. He said, despite being a director of Blackdeck (Pvt) Ltd, he was not personally liable for any criminal conduct proved against the company because he had not participated in such acts. He said the matter before the court was not criminal in nature but a contractual dispute between the Ministry and Blackdeck (Pvt) Ltd.

The State has remedies in contract law which it has not exhausted. The State has not made any efforts to recover any money from the guarantor since there is a guarantee. He said, resorting to criminal proceedings against him was wrong, misplaced and unfounded. Even criminal proceedings against Blackdeck (Pvt) Ltd as a company, would be premature and unlawful. He was not the only natural person in control of the company. There were other directors who collectively made decisions with him, in the interest of the company. He was, thus, not solely responsible for everything done by the company or its actions. He had not participated in the compilation and submission of the bid or supporting documents which included the, allegedly, fake ZIMRA tax and NASSA certificates. He was never, personally, the custodian of the allegedly forged ZIMRA and NSSA certificates. The State had not suffered any prejudice. His prosecution was at the behest of a 'third hand' or interested parties who are doing it for political gain. He stated his intention to call five witnesses to confirm his defence.

The second applicant denied committing the offence in question and more specifically, making the alleged misrepresentation regarding the incorporation status of Blackdeck Livestock and Poultry Farming. He denied the allegation that he submitted the alleged fraudulent ZIMRA and NASSA certificates. He denied making any misrepresentation regarding the capacity of Blackdeck Livestock and Poultry Farming to supply 632 001 goats. He was not a party to the contract. He did not see why he had been dragged before the courts because there was no evidence linking him to the alleged crime of fraud. He had no relationship with Blackdeck (Pvt) Ltd or the alleged unregistered entity whether as a member, employee, agent, shareholder or director of. He had not, at any time, acted in any authorized capacity, on behalf of the Blackdeck (Pvt) Ltd or the alleged unregistered entity. He averred that the doctrine of common purpose which the State sought to invoke in attaching liability to him did not apply in the circumstances of this case. The facts, as alleged by the State did not show how he was associated with the alleged forged documents or the bid submitted by Blackdeck (Pvt) Ltd or the alleged unregistered entity. He was nowhere near when the agreement was entered into. He was not present when the goats were supplied to the Ministry by Blackdeck (Pvt) Ltd. He did not receive any money from Blackdeck (Pvt) Ltd which was part of the proceeds from what was paid by the Ministry. The only time that he attended a meeting at the Ministry of Lands was when a dispute had already arisen between Blackdeck (Pvt) Ltd and the Ministry. He attended the meeting in his capacity as the chairperson of a

local pressure group called Economic Empowerment Group (EEG) which advocates for prioritisation of local companies by government when entering into agreements for the supply of good and services. The meeting was way after the alleged offence had been committed, and he was simply trying in that capacity for the two parties to find each other. He said he was a director and shareholder in a company known as Millytake Enterprises (Pvt) Ltd, a company which responded to the invitation for bids and competed in the bidding process but lost. He could never have advanced the interest of a competitor by helping Blackdeck (Pvt) Ltd in preparation of its bid or to negotiate for the contract. Blackdeck (Pvt) Ltd won the tender, whereupon it subcontracted amongst other companies Millytake Enterprises (Pvt) Ltd, Cedar Farming (Pvt) Ltd and Nomistal Enterprises (Pvt) Ltd to secure goats from them as these companies had readily available goats. The arrangement had nothing to do with the contract between Blackdeck (Pvt) Ltd and the Ministry of Agriculture.

The State adduced evidence from the following witnesses at the trial.

Beven Mutsikamahwe employed by the Ministry of Justice under the Companies, Deeds and Intellectual Properties as a Principal Examiner testified that starting from February 2020, a company could do business under an assumed name but before using an assumed name, the company was required to register the assumed name in terms of section 29 of the Companies and Other Business Entities Act, [*Chapter 24:31*]. Blackdeck (Pvt) Ltd was a company incorporated in terms of the laws of Zimbabwe. Blackdeck Livestock and Poultry Farming was not the register name of any company on incorporation or assumed name of any company, Blackdeck (Pvt) Ltd, included.

Fungai Kapfunde, employed by ZIMRA as a supervisor in the Taxpayer Registration Section testified that Tax Clearance certificate used by the accused persons purported to be a genuine tax clearance certificate issued to Blackdeck (Pvt) Ltd. It, however, turned out to be a counterfeit because the QR and verification codes on it showed that it was in fact tax certificate belonging to Skywalk Investments (Pvt) Ltd which had been altered by superimposing the name Blackdeck (Pvt) Ltd to make it appear as genuine certificate issued to Blackdeck (Pvt) Ltd. A company which is tax compliant can easily obtain and print a tax clearance certificate from the ZIMRA self-service portal. *Taito Mbambi* told the court that he was employed by NSSA as the national compliance manager (credit control). He said a NSSA compliance certificate is only lawfully issued to a company which is in compliance with NSSA statutory requirements. The certificate is a mandatory requirement in government

tender processes. All government ministries, departments and agencies are instructed to include it among mandatory documents required for eligibility to tender for government contracts. A company which is NSSA compliant can generate a NSSA compliance certificate from a NSSA self-service portal. He was aware that Blackdeck (Pvt) Ltd as a company that was previously registered with NSSA but deregistered on the 8th of January 2016 and had been inactive ever since that time. The NSSA compliance certificate used by the accused purported to Blackdeck (Pvt) Ltd for the period 2021. When he checked it, he concluded that it was not authentic. He found evidence of tempering with the certificate because when scanned, the QR code gave the name of a company known as Skywalk Investment (Pvt) Ltd and not Blackdeck Pvt Ltd which was the name on the face of the certificate. He said Blackdeck (Pvt) Ltd could not generate an authentic NSSA compliance certificate because in the year 2021 it was not compliant with NSSA statutory requirements.

*John Basera t*estified that at the time of the alleged commission of the offence he was the Permanent Secretary for the Ministry of Agriculture. His evidence confirmed the background facts as summarised above. Following an adjudication of the bids, recommendations were made to the Procurement Regulatory Authority of Zimbabwe (PRAZ) which did not raise any objection to the tender processes, outcomes and recommendations, whereupon the Ministry entered into a contract with Blackdeck Livestock and Poultry Farming. The use of falsified documents by Blackdeck went unnoticed, otherwise it would have led to the automatic disqualification of Blackdeck Livestock and Poultry Farming. The Ministry only got to know that the ZIMRA Tax Clearance Certificate and the NSSA Compliance Certificate were forgeries from ZACC during investigations. The value of the contract between the Government of Zimbabwe and Blackdeck Livestock and Poultry Farming was about USD87 million, spread over a period of 5 years. As the accounting officer, he realised that there was no value for money when consideration was given to individual prices of the goats. Individual goat price was between USD175 to about USD250, which he considered exorbitant. In light of that, the Ministry further negotiated the prices which went down to between USD75 and USD92 depending on the breed. These prices included the purchase of the goats, mobilisation costs to the holding pens and onward distribution to far away villages. Thereafter, there was no satisfactory progress made by Blackdeck in the fulfilment of the contract whereupon a number of meetings were held with Blackdeck. Blackdeck (Pvt) Ltd, subsequently, wrote a letter to the Ministry saying that the

program was going on well with about 32 500 goats in the holding pens pending distribution to the targeted households. The Ministry immediately embarked on a verification exercise. The Ministry had dispatched teams to the various centres where only 3 388 and 325 kids were found out of the 32500 goats which Blackdeck (Pvt) Ltd had claimed to have mobilised. In light of the advance payment which had been made to Blackdeck (Pvt) Ltd in sums equivalent to USD 7 712 197.00 and at the average price of USD 90 .00, the committee had expected to find 85 000 goats. There was shortfall of 28 612 goats (89.6 %).

He was steadfast that the price of each goat included setting up pens, security of the goats, the cost of transport and logistics, price of veterinary care before delivery of the goats to the Ministry. He said the natural persons in control of the bidder were not allowed to interact with Ministry officials before the award of the tender. Due process demanded that all bids were supposed to be determined on the papers. The people behind the bid would only be known after due process had taken place on the papers and the tender awarded. He said by due process he meant that there were various stages on the papers to ensure compliance with the Public Procurement and Disposal of Public Assets Act [*Chapter 22:23*].

The witness testified that face to face meetings could only be held after the award of the tender because there was not supposed to be any influence at all before the award. In chasing up performance of the contract the Ministry dealt with the 1st and 2nd accused persons. The 1st accused was the operations manager and the 2nd accused would be present at all the meetings which the witness convened pertaining to the Presidential Goat Pass-on Scheme. The 2nd accused appeared to be the most senior, assumed a leading role during the deliberations and appeared to be the ultimate decision maker. The Government of Zimbabwe suffered actual prejudice in that it made an advance payment to Blackdeck Livestock and Poultry Farming but did not receive the corresponding number of goats. He said he knew the 2nd accused, prior to interacting with him in connection with this case, as a political figure. He did not meet the 2nd accused before the award of the tender. He said he had not expected to meet anyone because human interaction was not allowed before the award of the bid to allow due process on the papers. He said, subsequent to the award of the tender, the 2nd accused was among Blackdeck officials during the negotiations and at the launch of the scheme in Chipinge. He said the 2nd accused had participated in as far as he was among the Blackdeck officials during the negotiation of the contract terms and several meetings held with the technical teams and his attendance at the launch in Chipinge. He observed what he

described as the 2nd accused's ". ...physical connection with Blackdeck". The launches were open to the public but with respect to the 2nd accused there was his personal involvement which included participating in the negotiations with the Ministry. He said the second accused had participated in "mukufambira nyaya dzacho" which when translated means he was involved in follow ups after the award of the bid to Blackdeck. He maintained that he remembered correctly that he had met the 2nd accused.

Isa Precious told the court that she is employed by the Ministry of Agriculture in the procurement unit. She handled the tender bids submitted in response to the advertised tender. She confirmed that she was the one who drafted the contract between Blackdeck and the Government of Zimbabwe. She was of the view that the names Blackdeck (Pvt) Ltd, Blackdeck Livestock and Poultry Farming and Colenso Farm, all referred to the same entity. It was the bid at the centre of this trial. She knew the 2nd accused because she recalled that both accused attended meetings at the Ministry in connection with the bid.

Chenayi Garise-Nheta testified that she is a lawyer by profession employed by the Ministry of Agriculture as a Deputy Director. She was the chairperson of the Evaluation Committee that adjudicated over the Presidential Goats Pass-on Scheme tender. She did not know the accused. Her committee became involved after the procurement department had given a preliminary report. Her committee checked the bids for compliance against the preliminary report. Her committee did not do any due diligence of its own, in relation to the documents that were supplied. It relied on the preliminary report in considering whether the bids met the mandatory requirements. It was also interested in the cheapest of the bids and the easiest payment terms. The committee did not do any due diligence to verify the supporting documents with the purported issuers before recommending Blackdeck Livestock and Poultry Farming for the tender. The committee did not verify the security features on the documents. The ZIMRA tax clearance and NSSA compliance certificate submitted with the bid appeared to be genuine at face value from the logos, and the names of the issuers and form. They looked, exactly, like those that are issued by ZIMRA and NSSA which they dealt with regularly. As a lawyer, she formed the opinion that the bid had been submitted by Blackdeck (Pvt)Ltd. She was not bothered by the other names because she thought they all refereed to the same entity. In her opinion, the condemnation of the ZIMRA tax clearance and NSSA compliance certificates by ZIMRA and NSSA as counterfeits meant that the contract with Blackdeck Livestock and Poultry Farming was a nullity from the beginning. As at the

time of giving evidence in the year 2025, Blackdeck (Pvt) Ltd or had not submitted valid ZIMRA tax clearance and NSSA compliance certificate to replace the counterfeits.

Alban Mhindurwa told the court that he is employed by the Ministry of Agriculture. At the material time he was the Director of Livestock Development. When the tender for Presidential goat scheme was advertised the 1st accused visited his office enquiring about the tender and he directed him to the relevant department. The witness and the 1st accused exchanged telephone numbers. Later he heard that there were goats being bought. He enquired from the 1st accused who confirmed that he had won the tender. The witness congratulated the 1st accused following the award. On the 22nd of February 2022 the 1st accused requested to see the witness. They met whereupon the 1st accused informed him that he had already started the work of sourcing the goats. On the 2nd of March 2022 the two accused persons came to his office. He told them that notwithstanding their mobilisation of the goats, the distribution was only going to start after the launch by the President. On the 2nd of March 2022 both accused persons visited the witness at his office. He told them that he was working on a roadmap for distribution. Thereafter the two accused would update the Ministry of Agriculture on the progress of mobilization of the goats. He later received communication from Gift Matiza in a letter addressed to CD Jiri (Chief Director in the Ministry) that Blackdeck had mobilized 32 500 goats. Gift Matiza later came to the witness' office whereupon the witness told Gift Matiza that the ratio was supposed to be one buck (male goat) to 20 does. When he received the letter in July which was copied to him advising that about 32500 goats had been mobilised, the Permanent Secretary, Jon Bhasera, asked him to carry out a verification exercise. He requested the provincial directors to release livestock personnel to do the verification at the alleged holding sites whereupon he invited the 1st accused to his office through a telephone call in connection with the intended verification exercise. The 1st accused arrived with the 2nd accused for that meeting and both attended. Minutes were taken of the meeting held in his office in his capacity as the Director Livestock Development. He produced the Minutes of the meeting as exhibit 15 by consent. At the meeting, the accused persons said the verification exercise was going to present problems because the goats were scattered. The witness insisted that the exercise had to be done since that was the instruction from the Permanent Secretary. The accused persons left saying they were going to see the Permanent Secretary and thereafter return to him. In December 2022, following numerous requests by stakeholders in connection with intended provincial

launches, the witness telephoned the 1st accused in connection with the delivery and supply of goats. In response, the 1st accused advised him that they had suspended the supply of goats for the project. The witness advised his principal of that development.

In December 2022 he produced a goat performance report which he circulated to his principals whom he named as CD Jiri, Dr Makonye, Mr Chuma and the Permanent Secretary. At that stage Blackdeck Livestock and Poultry Farming had supplied 4 208 goats valued at USD331 445 using the addendum contract price giving an outstanding balance of USD7.38 million in terms of goats to be supplied. On the 29th of January 2023 the witness invited the 1st accused for a re-engagement meeting which subsequently took place on the 7th of February 2023. At the meeting Blackdeck was represented by the 1st and 2nd accused who were accompanied by their lawyer Mr Tapson Dzvetero.

Obert Jiri testified that he was involved in the price negotiation with Blackdeck where he interacted with both accused persons. Initially the meetings were held to discuss the prices and Blackdeck was represented, at the negotiations, by three gentlemen who included the two accused. Whenever he referred to the two accused persons he would mention their names. The witness was accompanied by other officials from the Ministry at the meetings. He did not know the capacity in which the two accused persons attended the meetings but whenever he called for a meeting with Blackdeck, the two accused persons would come. At some point Blackdeck said it had 32500 goats but a verification exercise disproved that. At that stage he was no longer in direct communication with the accused persons because he had assigned the responsible director to deal with Blackdeck matters.

When the launch was done and distribution was supposed to take place throughout the country it was realised there were less and less goats coming. At some stage they got 500 goats. Around June 2023 the Ministry realised that Blackdeck lacked the capacity to supply the goats. The Ministry then initiated the process to cancel the agreement, but, still, the Ministry directed Blackdeck to continue with its supply of goats because the Ministry really needed the goats. Officials at the Ministry were becoming increasingly frustrated because the contract was no longer worth it. Under cross-examination on behalf of the 2nd accused he maintained that the 2nd accused attended the meetings and was also at the launch. He said both accused persons would be there when goats were being distributed. He thought there were minutes confirming the meetings but most of the meetings were mutual. He, however conceded that he could not remember the number of meetings attended by the 2nd accused but

all he could remember was that the 2nd accused and he, eventually became acquainted with each other due to continued interaction.

Sipiwe Mphadzula employed by CABS as the operations officer produced the bank statements in respect of Blackdeck Pvt Ltd account number 1006126120 for the period April 2022 to January 2023 and Millytake Enterprises account number 1129742431 for the period April –December 2022 and vouched that they revealed the correct records of transactions by the account holders during the relevant period. A perusal of the Blackdeck (Pvt) Ltd CABS bank account number 1006126120 and Millytake Enterprises (Pvt) Ltd CABS bank account number 1129742431 statements revealed quick disbursements of all the funds paid by the Ministry and none was disbursed with the narration that it was paying for goats.

AS stated above, we found the applicants guilty as co-perpetrators of the offence of fraud as defined in s196A of the Criminal Law Code. Persons charged as co-perpetrators may be convicted as such if the State proves that they committed a crime in association with each other and the State adduced evidence to show that each of them had the requisite *mens rea* to commit the crime, whether by virtue of having the intention to commit it or the knowledge that it would be committed, or the realisation of a real risk or possibility that a crime of the kind in question would be committed. Where the State has proved that the accused persons the crime in association with each other and that each of them had the requisite *mens rea* to commit the crime the co-accused persons may be convicted as co-perpetrators, in which event the conduct of the actual perpetrator (even if none of them is identified as the actual perpetrator) shall be deemed also to be the conduct of every co-perpetrator, whether or not the conduct of the co-perpetrator contributed directly in any way to the commission of the crime by the actual perpetrator.

The implications of s196A of the Criminal Law Code is that persons charged as co-perpetrators may be convicted as charged if they committed the crime in association with each other and it is not necessary to prove that each co-accused personally did all the acts constituting the essential element of the crime. Proof of association with the intention to commit a crime or the knowledge or realisation that a crime is being committed suffice. Presence at or in the immediate vicinity of the scene of the crime in circumstances which implicate them directly or indirectly in the commission of that crime shall be indicative (but not, in themselves, necessarily decisive) as a factor tending to prove that the co accused persons accused of committing a crime in association with each other together had the

requisite *mens rea* to commit the crime. Association together in any conduct that is preparatory to the conduct which resulted in the crime for which they are charged shall be indicative (but not, in themselves, necessarily decisive) as a factor tending to prove that the co accused persons accused of committing a crime in association with each other together had the requisite *mens rea* to commit the crime. Engaging in any criminal behaviour as a team or group prior to the conduct which resulted in the crime for which they are charged shall be indicative (but not, in themselves, necessarily decisive) as a factor tending to prove that the co accused persons accused of committing a crime in association with each other together had the requisite *mens rea* to commit the crime.

At the end of the trial, it was undeniable that Blackdeck Livestock and Poultry Farming did not exist as company incorporated in terms of the laws of Zimbabwe with the legal capacity to act. The Ministry officials dealt with Blackdeck Livestock and Poultry Farming and accepted its bid as valid after being misled into believing that Blackdeck Livestock and Poultry Farming was lawfully the other name of Blackdeck (Pvt) Ltd. This was achieved that by fraudulently submitting documents of incorporation belonging to Blackdeck (Pvt) Ltd with the fraudulent bid, namely a certificate of incorporation, a list of directors on form CR 14 and a CR6 all in the name of Blackdeck (Pvt) Ltd. Realising that Blackdeck (Pvt) Ltd had no documents in its name which they could use fraudulently to give the false impression that the fictitious company had paid taxes, duties and rates for which it may have been liable and the contributions as well as payments due under the National Social Security Authority Act (NSSA) [*Chapter17:04*], they fraudulently submitted two counterfeit certificates. One was a Zimbabwe Revenue Authority (ZIMRA) clearance certificate belonging to Skywalk (Pvt) Ltd which had been altered. The other was a counterfeit a National Social Security Authority (NSSA) compliance certificate belonging to Skywalk (Pvt) Ltd, which had also been altered. As a result of the misrepresentation, the fraudulent bid submitted by the accused persons in the name of a fictitious company was accepted by the Ministry and treated as valid thereby escaping disqualification.

The fraudulent bid sailed through the verification and adjudication processes before being submitted to the Procurement Regulatory Authority of Zimbabwe which endorsed recommendations by the Ministry to award portions as one of the two successful bidders. The confusion created by the misrepresentation resulted in officials at the Ministry and the Procurement Regulatory Authority, officials in the Ministry of Lands referring to Blackdeck

Livestock & Poultry Farming by various names such as Blackdeck, Blackdeck Livestock, Blackdeck Livestock & Poultry Farming, Colenso Farm and Blackdeck (Pvt) Ltd, interchangeably, during the vetting and adjudication processes and related correspondences. The false impression created by the use of various names created so much confusion in the minds of the government officials that one Precious Isa, the official responsible for procurement at the Ministry drafted a contract in which she made Blackdeck Livestock & Poultry Farming a party genuinely but erroneously believing it had the legal capacity to act and it was lawfully known by that name. Blackdeck Livestock and Poultry Farming, is cited in the contract as a legal persona which could supply 632 001 goats valued at US$87 757 168.00 under the Presidential Goat Pass-On Scheme.

Pursuant to the conclusion and the signing of the contract, ostensibly, reached between it and the non-existent company, the Government of Zimbabwe, paid a total sum of ZWL$1.6 billion (equivalent to US$7 712 197.10 at the prevailing interbank rate) to the fictitious company in expectation of delivery of goats, equivalent in value to the money paid. The money was paid into the CABS bank account of Blackdeck (Pvt) number 1006126120 which had been provided in the contract by the accused persons under the guise of the fictitious Blackdeck Livestock and Poultry Farming. Upon receipt of the money from the Ministry, Blackdeck (Pvt) Ltd immediately, transferred huge amounts to Ceder Farming (Pvt)Ltd, Nomistal Enterprises (Pvt) Ltd and Millytake Enterprises (Pvt) Ltd. The rest of the money was disbursed from Blackdeck (Pvt) Ltd's bank account.

Millytake Enterprises (Pvt)Ltd is a company controlled by the 2nd accused person as its director. It received a total sum of ZWL$200 000 000.00 (Two Hundred Million United States Dollars) in its CABS bank account number 1129742431.

It was common cause at the trial that Blackdeck (Pvt) Ltd's bank account was overdrawn prior to the disbursement of funds by the Ministry into its bank account. It was also common cause that in no time all the money had been disbursed and the account had reverted to its overdrawn status. It was also common cause, at the trial, that all the companies which, in turn, received money initially disbursed to the fictitious company by the Ministry, unlawfully, traded the same on the foreign exchange black-market in exchange for United States dollars. It was also common cause that the amount of foreign Currency which was raised was neither banked nor disclosed. In terms of the Bank Use Promotion Act [*Chapter 24:24*] the companies were, in the year 2021, required, in the absence of good cause for not

doing so, deposit the all foreign currency at their disposal in excess of two hundred dollars, into an account with a financial institution no later than the close of normal business hours on the day following their receipt of the money. It was common cause that in terms of the statement of mandatory requirements in Part 2 of the Standard Bidding Document, under the heading 'CORRUPT PRACTICES', the Ministry, the bidders and contractors were required to adhere to the highest standard of ethics during the procurement and execution of the contract. The trading the money received from the Government on the black market for foreign currency was not only unauthorised by the Government which pegged prices at the official rate but was also unlawful and, for that reason alone, unethical. The companies were fined by the Reserve Bank Financial Intelligence Unit, for trading the money on the black-market.

The intended appeal against conviction by the 1st applicant is based on the following grounds of appeal

Appeal against conviction:

1. *The court aquo erred at law in refusing to discharge 1st appellant at the close of the state case when the state had brought witnesses who corroborated the appellant's defence that it was Blackdeck (Private) Limited, the registered entity, that submitted the bid and was awarded the tender and not any other entity or appellant as an individual.*
2. *The court aquo erred at law in convicting appellant of fraud when the state had failed to prove even a single element of fraud against appellant under circumstances where the law required the state to prove all the elements of fraud beyond reasonable doubt.*
3. *The court aquo grossly misdirected itself on facts when it made a finding that 1st appellant and his group of people accessed Blackdeck (Private) Limited's identity and used same to commit the crime of fraud. The finding was a gross misdirection in that it was not supported by any evidence heard in court.*
4. *The Court aquo erred at law in convicting appellant of the offence of fraud basing on alleged false statements which statements were known to have been made by a different person and in writing, under circumstances where there was no evidence adduced in court to prove that appellant got to know of the existence of the false statements and that the person so making the statements was acting in connivance with appellant.*
5. *The Honourable Court aquo erred at law in convicting appellant in his capacity as Director of Blackdeck (Private) Limited a charge that was never preferred against the appellant and which only emerged from the court judgement.*

6. *Assuming without conceding that the court aquo properly invoked the reverse onus provision by proceeding under section 277 of the Criminal Law Code, it is appellant's contention that he duly discharged that onus through the uncontested evidence that:*
   i. *compliance issues were the responsibility of another Director and not himself.*
   ii. *that he did not participate in the preparation of the Bid as he got actively involved only after the award of the Bid.*
   iii. *He was at no time the custodian of the offending documents He did not make any representation as to the quality of such documents to the Ministry of Lands, agriculture, water and fisheries.*

Appeal against sentence

1. *The court having categorised this case as one of faking qualifications to obtain a contract, it erred at law in failing to follow the sentencing regime adopted in case of a similar nature where courts emphasised the need to impose none custodial sentences.*
2. *The court aquo misdirected itself at law in sentencing appellant to twenty -two years in prison for an offence committed by a company of three directors and more than 200 employees under circumstances where there was no evidence of appellant having played a prominent role in its commission.*
3. *The court fell into error in treating the offence as a serious one basing on the figure of seven million united states dollars which figure was arbitrarily introduced by one of the state witnesses from his own head.*
4. *The court aquo erred in failing to take into account the major role played by the Ministry of Lands, agriculture, water and fisheries in the failure of the goat scheme in failing to make payment as agreed and unprocedurally cancelling the contract before the supply of the goats had even begun and when Blackdeck (Pvt) Ltd was still engaged in preparatory work believing that more payments were still coming.*

The intended appeal lacks substance in light of the undisputed facts. The 1st accused conceived the idea to submit the bid. He was present at the meeting where the decision was reached to submit the bid as Blackdeck Livestock & Poultry Farming. He was aware that Blackdeck Livestock & Poultry Farming was not a registered company and thus lacked the capacity to act. He was aware that legal documents belonging to Blackdeck (Pvt) Ltd were to be used and submitted with the bid. He had the knowledge that the purpose of submitting the documents was to characterise Blackdeck Livestock & Poultry Farming falsely as a body corporate with the legal capacity to act. He conceded that he was aware that ZIIMRA and NSAA tax clearance certificates were mandatory requirements for eligibility. He agreed that

the ZIMRA and NSAA tax clearance certificates submitted with the bid were falsified legal documents belonging to Skywalk Investments (Pvt)Ltd. He accepted that the falsification of the documents necessarily invalidated the bid and that Blackdeck Livestock & Poultry Farming escaped disqualification because it had used counterfeit documents. He agreed that as the lawful director of Blackdeck (Pvt) Ltd he was in control of its business affairs. He agreed that he held several meetings with the Ministry officials where the terms of the contract entered into between the fictitious company and the government were discussed and agreed upon. He admitted signing the contract on behalf of Blackdeck Livestock & Poultry Farming and being its representative in the performance of the contract. He did not dispute that Blackdeck Livestock & Poultry Farming did not have a bank account. It is incontestable that it could not open a bank account because it did not have the capacity to act. The 1st applicant was aware of that because he provided the bank account of Blackdeck (Pvt) Ltd's in the contract which he signed. The money paid by the Government through Blackdeck (Pvt) Ltd bank account, was, by and large traded on the black market for foreign currency except the funds paid to the legal practitioners. In terms of s277 of the Criminal Law Code a director is personally criminally liable for any offence for which his company is criminally liable even where the company has not been prosecuted. The only requirement is that the company is or was criminally liable. The only defence available to him would have been that he took no part in the criminal conduct. In this case, it is common cause that the 1st applicant admitted took part. In mitigation he apologised for his misdeeds. In address made in open court to the people of Zimbabwe and the President he said

> "I want to say to Zimbabweans, I regret that the programme of the President ended like this.".

In light of the admissions, made by his client, it is frivolous and vexatious that the 1st applicant counsel would revive the argument that Blackdeck Livestock & Poultry Farming is a corporate entity. A company exists only in the eyes of the law after the formalities of incorporation in the Companies and Other Business Entities Act [*Chapter 23:41*] have been fulfilled. A trade name may only be used lawfully after the legal formalities in the Companies and Other Business Entities Act [*Chapter 23:41*] have been fulfilled. A legal practitioner who insists in a court of law that the juristic person known at law, as a company, came into existence or that a trade name existed at law, well knowing , and even admitting in an open court, that, factually, no formalities were undertaken in terms of the Companies and Other

Business Entities Act to bring the legal fiction into existence, does so , only, to cause annoyance to the court. A legal practitioner who insists that no fraud was committed while at the same time admitting before the same court that counterfeit documents were used by his client to escape disqualification clearly acts contrary to the oath to respect the laws of Zimbabwe and demean oneself in the practice of the profession. Such is dishonourable conduct and causes annoyance. A legal practitioner who argues that his client did not take part in an activity which his client admitted in an open court that he participated in, acts unethically and shows disdain for court processes. A legal practitioner who insists that there was no intention to use falsified documents to fake tax compliance without producing proof to controvert State evidence produced with his consent that his client was not tax compliant clearly acts unethically. The intended appeal against conviction by the 1st applicant would therefore be an abuse of process. It lacks substance.

The intended appeal by the 2nd accused is based on the following grounds of appeal: -

1. *In convicting the appellant of the offence of fraud as a "co-perpetrator" with his co accused, the court a quo erred in law and misdirected itself in that its finding that the appellant had the requisite mens rea to commit the offence was irrational in that no reasonable court, applying its mind to the totality of the evidence, could ever have found that the appellant had the requisite mens rea within the contemplation of section 196A(1) of the Criminal Law (Codification and Reform) Act (chap 9:23).*
2. *As an alternative to 1 above, having found that the appellant had neither signed the tender documents containing the impugned Zimra tax clearance and NSSA compliance certificates nor physically submitted the tender documents nor been one of the official directors of Blackdeck (Private) Limited, the court a quo erred in law and misdirected itself in not finding that the appellant could not have been a "co-perpetrator" within the contemplation of section 196A(1) of the Criminal Law (Codification and Reform) Act (chap 9:23). 3.*
3. *As an alternative to both 1 and 2 above, whereas the charge identified the misrepresentation relevant to the alleged fraud to be the submission of fake Zimra tax and NSSA compliance certificates, the court a quo erred in law and misdirected itself in convicting the appellant of the offence of fraud on the basis of misrepresentation of facts that were not part of the charge, in that the court went on a frolic of its own in finding that what was misrepresented consisted of stealing the corporate identity of Blackdeck (Private) Limited and capacity to supply goats.*
4. *As an alternative to 1; 2 and 3 above, the court a quo erred in law and misdirected itself in convicting the appellant of the offence of fraud without making any categoric finding on whether or not the acts forming the subject of the alleged offence were committed by the*

appellant in his personal capacity or by the appellant as a director of a company known as Blackdeck (Private) Limited or by both the appellant and the company in question, thereby failing to apply the provisions of section 277 of the Criminal Law (Codification and Reform) Act (chap 9:23)

The following is the proposed ground of appeal against sentence:

5. The court a quo improperly exercised its discretion in respect of sentence in that the sentence it imposed of an effective 12 years imprisonment plus restitution, is so manifestly excessive and so disturbingly inappropriate in all the circumstances of this case as not only to induce a sense of shock but also as an instance of an exercise in irrationality.

The intended appeal against conviction by the 2nd accused also lacks substance.

The allegation that the trial court went on a frolic of its own when it found that the corporate identity of Blackdeck (Pvt) Ltd was stolen to characterise Blackdeck Livestock & Poultry Farming as a company with the capacity is unfortunate and clearly demonstrates that the 2nd applicant pretence not to understand the charge. It was clearly the State allegation that the accused persons misrepresented Blackdeck Livestock & Poultry Farming as a duly incorporated company. The State led evidence to prove that the misrepresentation was through the use of legal papers belonging to Blackdeck (Pvt) Ltd. The State led evidence to prove that, at law, Blackdeck (Pvt) Ltd was not known as Blackdeck Livestock & Poultry Farming. The State led evidence that the 2nd applicant appeared at the Ministry together with the 1st applicant on various occasions associating himself with the fictitious company. He was identified by the several state witnesses who interacted with him and their testimonies are admitted, by and large, admitted by him. They had no reason to lie against him. Actually, the State witnesses did not realise that there was anything amiss about his involvement and his presence at the meetings where the two applicants conducted themselves as the human faces (alter ego) of the bidder. The 2nd applicant admitted attending a meeting convened in Alban Mhindurwa's office as a pre-departure meeting for the goats verification exercise. He agreed that he attended the meeting in the interests of the bid submitted by Blackdeck Livestock and Poultry Farming which he wanted to succeed. He was even wearing his hat as chairperson of the Economic Empowerment Group in Zimbabwe which lobbies for the preferential treatment of indigenous companies in government procurement contracts intending to use his influence to ensure that the project was not derailed by the dispute which had arisen. On the face of it he unlawfully used the powers of the Economic Empowerment Group because he did not exhibit a resolution authorising him to attend on behalf of the group. While,

politically, there is no law prohibiting lobbying for the policy empowerment policy, it was unlawful to canvass for particular bidder at the expense of others. He said he attended the meeting at the behest of Blackdeck (Pvt) Ltd. Blackdeck (Pvt) Ltd was also a perpetrator of this crime. While he said he was representing the business interest of Blackdeck (Pvt) Ltd, he was doing so unlawfully because he did not have a resolution by Blackdeck (Pvt) Ltd authorising him to act lawfully on his behalf. He had simply agreed with the 1st applicant to take control the affairs of Blackdeck (Pvt) Ltd and they both attended the meeting donning the corporate identity of Blackdeck (Pvt) Ltd. At the end of the trial, he had not produced the resolution. He was therefore in association with the 1st accused in as far as donning the corporate identity of Blackdeck (Pvt) Ltd at the meeting without lawful authority. The Ministry officials were misled and genuinely believed that they were dealing with a representative of a bidder which they mistakenly believed to be Blackdeck (Pvt) Ltd. The reasonable inference to be drawn from that circumstance is that the 2nd accused associated himself with the grand plan to misrepresent the fictitious company which submitted the bid as a registered company. He was seen at the launch observably associating himself with the 1st accused and others who were delivering some goats, purportedly, on behalf of the fictitious company. There were only two parties to the launch. They were the government taking delivery and the group of persons who purported to be a registered company by covering their project with the corporate identity of Blackdeck (Pvt)Ltd. It was possible to observe who was representing the government or who was part of the group of people delivering goats was and who were bystanders. Bystanders would just be watching from the terraces. It was possible for witnesses to make that observation. The 2nd accused is a director of Millytake Enterprises (Pvt) Ltd and thus controls its affairs. Millytake Enterprises (Pvt) Ltd received some of the proceeds which is abused on the black-market in the same way that the rest of the proceeds were abused on the black-market by Blackdeck (Pvt) Ltd and its proxies. The similarity in the modus operandi could not be a coincidence. The *modus operandi* in not keeping record of the amount raised as foreign currency and refusing to account for it on the similar reason that tends to confirm the motivation to steal the corporate veil of registered companies. By virtue of being a director of Millytake Investments, the 2nd accused is deemed to have participated in unlawfully dealing with the proceeds of the crime. In terms of s 277 he was deemed to be criminally liable of any offence for which Millytake was liable. Millytake was chargeable as an accomplice of the 1st accused and Blackdeck (Pvt) Ltd. He declined to

clarify issues regarding the circumstances under which his company received the proceeds of the crime and spent some unlawfully preferring to hide behind the corporate veil of Millytake Investments. The reasonable inference to be drawn was that he had a propensity to hide behind corporate veil. He unlawfully using the corporate veil of Blackdeck (Pvt) Ltd to justify his attendance at the verification meeting. He had assumed the role of an unlawful director in agreement with his friend, the 1st accused, who is a lawful director of the company. He still hides behind the corporate veil to justify his attendance at the verification meeting. He did not produce any proof of any agreement between Millytake Investments (Pvt) Ltd and Blackdeck (Pvt) Ltd justifying its lawful participation in the proceeds of the crime. He is liable in terms of s277 for the criminal liability of Millytake Investments (Pvt) Ltd as its lawful director. He is also liable, additional, to his personal participation observed by the State witnesses, for the criminal liability of Blackdeck (Pvt) Ltd in as far as he an unlawful director as defined in s277 of the Criminal Law Code.

The cogency of the circumstantial evidence against him in this case from the plethora of independent circumstances listed above all point to the same conclusion, that he was a party to the unlawful project with the requisite *mens rea* to commit the crime and thus guilty as a co perpetrator. The totality of the circumstances listed above cannot be explained by any other inference than that he was a co-perpetrator. The least that the 2nd applicant would have done if, indeed, he was innocent was to take the court into his confidence and give an innocent explanation for the various attendances he made at the Ministry. The credibility of the state's witness is beyond question on any reasonable grounds.

As regards the sentence, I note the instructive sentiments *McGown* case, supra, that an application for leave to appeal against sentence should be treated less rigidly than one to appeal against conviction, because the assessment of sentence is one of the more difficult tasks with which a judicial is faced. The *McGown* case was decided in 1995, that is eighteen years before the promulgation of the Criminal Procedure (Sentencing Guidelines) Regulations, 2023, Statutory Instrument 146 of 2023. The sentencing guidelines have made sentencing easier for judicial officers who follow them to the letter.

The law is that a court of appeal will only interfere with the sentencing discretion of a lower court if it considers that a substantial miscarriage of justice occurred. It will only do so if the lower court committed an irregularity or a misdirection committed by the lower court. If there has been no misdirection, the appeal court will not be at large to interfere with the

sentencing discretion of the trial court. In any event there can only be a substantial miscarriage of justice if the sentence is disturbingly inappropriate or so severe as to induce a sense of shock. See *S* v *Sidat* 1997 (1) ZLR 487.

Incidences of irregularity or misdirection would therefore only arise if the trial court demonstrably failed or neglected to follow the sentencing guidelines. Occurrences of inappropriate sentences or sentences so excessive as to induce a sense of shock should now be a rare occurrence in light of the binding nature of sentencing guidelines, presumptive penalties, the requirement to state sentencing trends and the rigorous mandatory considerations which inform the exercise of sentencing discretion where the sentencing judicial officers departs from the presumptive penalty.

The guidelines were promulgated in the year 2023, pursuant to the provisions of s334A of the Criminal Procedure and Evidence Act [*Chapter 9:07*], which empowers the Judicial Service Commission, from time to time, to convene a judicial conference for purposes of formulating sentencing guidelines and in particular, provide for

(a) inquiries and investigations to be conducted by courts prior to sentencing offenders;

(b) the factors to be considered by courts when sentencing offenders;

(c) forms of punishment that may be imposed as alternatives to custodial sentences;

(d) principles and criteria which will assist in promoting consistency in sentencing and the equitable.

In terms of s 334A (1) of the Criminal Procedure and Evidence Act further provides that the sentencing guidelines shall be in the form of a table of presumptive penalties supplemented by additional guidelines addressing such of the factors as the judicial conference considers relevant.

The guidelines apply to all criminal proceedings in all courts that conduct trials at first instance. With the objective of fostering public confidence in the criminal justice system by promoting consistency and transformative justice in sentencing and eliminating unwarranted disparities in the punishment of offenders. The guidelines are *on all judicial officers.* Where they provide for a presumptive penalty, the courts shall pay due regard to the applicable sentencing guidelines when sentencing offenders. A “presumptive penalty” means a penalty expressed as a specific amount of a fine or a specific period of imprisonment or both that is midway between an augmented penalty which may be imposed in aggravating circumstances and a diminished penalty which may be imposed in mitigating circumstances. Where a

sentencing court departs from a prescribed presumptive penalty as provided for in these guidelines it shall give reasons for that departure.

The Sentencing Guidelines, therefore, provides for two presumptive penalties with respect to every crime. In the case of fraud, the considerations are as follows. A fraud is deemed to have been committed in aggravating circumstances and the presumptive penalty of imprisonment for twenty years is prescribed where one or more of the following situations obtain: -

a. the items, funds or property involved were of considerable value.
b. the funds or the items involved were not recovered.
c. the offender was in a position of trust.
d. the offender was a holder of a public office.
e. the offence involved public funds.

A diminished punishment is prescribed of the fraud was committed in mitigating circumstances. The mitigating circumstances are that the potential and actual prejudice was insignificant or that the offender voluntarily compensated the victim. In that case the presumptive penalty is prescribed as imprisonment for 6 months.

The potential prejudice was in the region of US$26 000 000.00 (Twenty-six million United States Dollars), being 30% deposit of out of the contract price of US$87 757 168.00 which the Government had initially agreed to pay under the Presidential Goat Pass-On Scheme Due to financial constrains Treasury only managed. sum of ZWL$1.6 billion (equivalent to US$7 712 197.10 to the fictitious company. The funds involved were, therefore, of considerable value. The bulk of the money was not recovered.

The actual advance payment made to Blackdeck (Pvt) Ltd was equivalent to USD 7 712 197.00. At the average price of USD 90 .00, the committee had expected to find 85 000 goats. There was shortfall of 28 612 goats (89.6 %). At that stage Blackdeck Livestock and Poultry Farming had supplied 4 208 goats valued at USD331 445 using the addendum contract price giving an outstanding balance of USD7.38 million in terms of goats to be supplied. It is common cause that the fraud committed by the accused persons involved public funds. All the money paid by Treasury constituted proceeds of crime because it was disbursed pursuant to a fraud. The goats supplied 4 208 goats valued at USD331 445 constitute money recovered.

Both applicants agreed that the applicable presumptive penalty was that of 20 years because the fraud was committed in aggravating circumstances. The court religiously followed the sentencing guidelines. If the court erred at all it would have erred on the side of leniency but the State has accepted the sentence.

In the result:" -

1. The applications for leave to appeal are dismissed.
2. Leave to appeal be and is hereby refused in both applications

KWENDA J: …….

National Prosecuting Authority, State's legal practitioners
Antonio and Dzvetero, 1st applicant's legal practitioners
Mugiya Law Chambers, 2nd applicant's legal practitioners